

24STCV23107 24STCV23107

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F24%2F2026

Source SHA-256: d8634113f63e74d858248d423f8b0d5e8ad837cd2eab92b63117adfc4f0d9913

Case Number: 24STCV23107 Hearing Date: July 24, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 24, 2026

Case Name: Saidian, et al. v. Saidian, et al.

Case No.: 24STCV23107

Matter: Motions to Compel Further Responses (2x)

Moving Party: Plaintiff Hersel Saidian

Responding Party: Defendant Cal Interpreting & Translations

Notice: OK

Ruling: The Motion as to form interrogatories is granted.

The Motion as to documents is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a business dispute between family members working in the legal industry. On June 30, 2025, Plaintiffs Hersel Saidian and Anahita Saidian filed the operative Second Amended Complaint ("SAC") for (1) breach of written contract, (2) breach of fiduciary duty, (3) promissory fraud, (4) rescission, (5) breach of fiduciary duty, and (6) an accounting.

Plaintiff Hersel Saidian now seeks to compel further responses to his form interrogatories ("FIs") and requests for production ("RFPs") from Defendant Cal Interpreting & Translations ("CIT").

The FIs seek basic information and Defendant's blanket objections lack merit. The Motion as to FIs is granted. Further responses are to be provided within 30 days.

The Motion is denied as to RFP nos. 1-2, which are not reasonably particularized and which are overbroad.

The Motion is granted as to RFP nos. 3-5, which pertain to subchapter S elections. Plaintiff alleges a 50% ownership interest and claims Defendant improperly converted to a Subchapter S corporation without consent. Plaintiff, as a putative or recorded shareholder/partner, demonstrates good cause for communications and documents relating to Subchapter S elections. Defendant's boilerplate objections are overruled.

The Motion is granted as to RFP nos. 6 and 55-89. These seek accountant communications. However, the responses do not properly comply with Code of Civil Procedure § 2031.230. Defendant must state under oath whether the inability to comply is because the items never existed, were destroyed/lost, or are in the possession of specific third parties (such as named accountants).

The Motion is granted as to RFP nos. 7-49, which seek relevant financial documents. A 50% shareholder is entitled to inspect corporate tax filings and schedules. While corporate entity privacy is a lesser right subject to a standard balancing test (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 755–756), Defendant's privacy and confidentiality concerns can be adequately addressed by a protective order.

The Motion is granted as to RFP nos. 50-52, which relate to payments and transfers to Hersel and Igal.

The Motion is granted as to RFP nos. 53-54, but the bank and brokerage statements will be subject to a standard protective order.

In sum, the Motion is granted in part as set forth herein. Further responses/production are to be provided within 30 days.

Moving party to give notice.